

Court No. - 2

Case :- WRIT - C No. - 56967 of 2009

Petitioner :- M/S. Tayal Steels (Pvt.) Limited & Another

Respondent :- State Of U.P. & Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- C.S.C., A.N. Singh, Asgi (2009/2366), Pankaj Kr. Shukla

Hon'ble R.K. Agrawal, J.

Hon'ble Mrs. Jayashree Tiwari, J.

At the very outset, learned counsel for the petitioner submits that in the similar set of fact, this Court has intervened and granted interim protection. Copy of the order dated 23.10.2009 passed in Civil Misc. Writ Petition No. 55099 of 2009 is shown to the Court.

In view of above, connect this petition alongwith the writ petition referred above. In the meantime, respondents may file counter affidavit.

Following the reasons/ order of this Court passed in the writ petition referred above, we direct that till the next date of listing, the petitioner will not be required to deposit the additional security as demanded from him by letter dated 22.5.2009.

Order Date :- 29.10.2009

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Respondent :- State Of U.P. & Others

Petitioner Counsel :- B.C. Rai

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Hon'ble Ashok Bhushan,J.

Hon'ble Virendra Singh,J.

No counter affidavit has been filed although time allowed earlier has come to an end.

Interim order already granted shall continue until further orders.

Order Date :- 9.2.2010

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Respondent :- State Of U.P. & Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- C.S.C.,A.N. Singh,Asgi (2009/2366),Pankaj Kr. Shukla

Hon'ble Sudhir Agarwal,J.

Hon'ble Om Prakash-VII,J.

1. Heard Sri B. C. Rai, learned counsel for petitioners and Sri N. Mishra, learned Standing Counsel for State.

2. Dispute raised in this writ petition pertains to demand of additional security for supply of electricity. This issue has already been settled by Division Bench of this Court in **M/s. Dev Prayag Paper Mill (Pvt.) vs. State of U. P. and 3 others passed in Writ C No.30898 of 2016** decided on 21.03.2017. Following aforesaid judgment, another writ petition being **Writ C. No.22449 of 2008** has been recently decided on 14.11.2018 by passing following order :

"Heard Sri B.C. Rai, learned counsel for the petitioner and Sri Mohan Srivastava, learned Standing Counsel for the State.

This petition relates to the payment of additional security for supply of electricity with the warning that if the payment of security is not made within the stipulated period, appropriate action would be taken in accordance with law. The petitioner has also challenged the provisions contained in clause (1) of Para 4.20 of the Electricity Supply Code, 2005, insofar as it provides 'as and when the distribution licence provides a choice to consumer to opt' being ultra vires the provisions of sub-section (5) of Section 47 of the Electricity Act, 2003.

Learned counsel for the petitioner fairly submits that number of identical matters have already been dismissed by this Court vide judgment dated 21.3.2017 passed in lead case Writ-C No.30898 of 2016 (M/S Dev Prayag Paper Mill (Pvt.) vs. State of U.P. and 3 others). He submits that said judgment is already subject matter before the Apex Court and as such in the present petition also similar order can be passed.

Considering the fair submission of learned counsel for the petitioner, the present petition is also dismissed in terms of order dated 21.3.2017 passed by this Court in a bunch of cases lead case Writ-C No.30898 of 2016 (M/S Dev Prayag Paper Mill (Pvt.) vs. State of U.P. and 3 others).

The writ petition is, accordingly, dismissed."

For the reasons stated in aforesaid judgment, this writ petition is also dismissed.

Order Date :- 20.11.2018

Manish Himwan